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File No.: EXP202303530

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
FACTS

FIRST: On February 7, 2023, a complaint was filed with the Spanish Agency for Data Protection against the CITY COUNCIL OF SAN CRISTÓBAL DE LA LAGUNA, with NIF P3802300H (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant, representing the local police of the City Council of San Cristóbal de La Laguna on behalf of the union organization ASIPAL-CSLA (Independent Union of Local Police of the Canary Islands), states that a time control system using fingerprint recognition has been implemented for the employees of the City Council without prior notification and without conducting the appropriate impact assessment. It adds that the aforementioned union organization has submitted two documents to the City Council, providing copies dated September 29 and October 4, 2022, in order to understand how the processing of fingerprint data for monitoring the presence of public employees is being carried out, in accordance with the regulations on personal data protection, without having received a response to date.

Along with the complaint, a Certificate from the Independent Union of Local Police of the Canary Islands is provided, stating that the complainant is a Personnel Delegate of the Staff Board of the City Council of San Cristóbal de La Laguna.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on March 17, 2023, as stated in the certificate in the file.

No response has been received to this forwarding letter.

THIRD: On May 7, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

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FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

On January 22 and February 9, 2024, two requests for information were sent to the CITY COUNCIL OF SAN CRISTÓBAL DE LA LAGUNA. Both electronic notifications are marked as "Delivered" dated January 22 and February 14, 2024, respectively. No response has been received. On March 6, 2024, it was verified that the information on data protection published on the website www.aytolalaguna.es does not contain references to the processing of fingerprints for time control purposes.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in

Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Investigative Actions

The text in force at the time the events occurred, of Article 67 of the LOPDGDD, establishes the following regarding preliminary investigative actions:

"1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if applicable, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a

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better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Agency for Data Protection will act in any case when it is necessary to investigate treatments that involve massive traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the admission agreement or from the date of the agreement by which its initiation is decided when the Spanish Agency for Data Protection acts on its own initiative or as a result of the communication that has been sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

This text was in force until the amendment of Organic Law 3/2018, of December 5, which was carried out by Law 11/2023, of May 8.

III

Expiration of actions

In relation to the preliminary actions, the Development Regulation of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose or is incompatible with the provisions of the GDPR and the LOPDGDD, in its Article 122.4 states that "The expiration of the term without a sanctioning procedure initiation agreement having been issued and notified will result in the expiration of the preliminary actions."

According to the provisions of the transcribed articles, the preliminary actions must be understood as expired if, more than twelve months have passed from the date of admission of the complaint, and the initiation agreement of the sanctioning procedure has not been issued and notified.

In the present case, the computation of the maximum duration of the preliminary actions (in accordance with the previous wording of Article 67 of the LOPDGDD, which extends the period of preliminary investigative actions to eighteen months and came into force on May 10, 2023) began on May 7, 2023, and is currently still pending completion, so they must be declared expired.

IV

Initiation of new investigative actions

On the other hand, Article 95.3 of the aforementioned LPACAP states that:

"Expiration will not by itself produce the prescription of the actions of the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into it. In any case, in the new procedure, the procedures for allegations, proposal of evidence, and hearing of the interested party must be completed."

In this regard, the National Court considers (Judgment of July 10, 2013) that “the declaration of expiration of the preliminary investigative actions initiated by the Spanish Agency for Data Protection does not pose any obstacle for said entity to proceed to initiate or restart other preliminary investigative actions on the same facts, as long as the prescription period of the administrative infringement under investigation has not elapsed.”

Consequently, the expiration of the preliminary investigative actions has occurred; without prejudice to the AEPD being able to carry out additional actions in case the infringements subject to the complaint are not prescribed.

Therefore, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigative actions.

SECOND: TO NOTIFY this Resolution to the TOWN HALL OF SAN CRISTÓBAL DE LA LAGUNA and to the complaining party.

Against this resolution, which concludes the administrative process according to the provisions of Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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